Acceptable Use Policy

This Acceptable Use Policy (“AUP”) describes acceptable use of and access to any Product offered by Neighbored LLC, including any Mobile Apps, whether it is provided directly or through another party. By accessing or using the Products, Customer agrees to the terms of this AUP and will be held responsible for any violations hereof. Without Customer’s agreement to abide by this AUP, Neighbored LLC cannot provide the Products. Use of the Neighbored LLC Produts shall be subject of the Neighbored LLC

Unless otherwise defined herein, or in the Agreement between Customer and Neighbored LLC, all capitalized terms used within this AUP have the following meaning:

Customer: a company, or its representative with a current agreement with Neighbored LLC for the purchase of Products or a user of a free trial version of Neighbored LLC.

Customer Data: all items uploaded to the Products

Intellectual Property Rights: all and any copyright, know-how, rights in inventions, patents, trade secrets, trade marks and trade names, service marks, design rights, rights in get-up, database rights and rights in data, the right to sue for passing off, utility models, domain names, rights in goodwill and all similar or equivalent rights and in each case, whether registered or not, including any application to protect or register such rights and all renewals and extensions of such rights or applications, whether vested, contingent or future, and wherever existing.

Products: Neighbored LLC software products and services, including Neighbored LLC trial versions, additional products purchased, and any modified, updated or enhanced versions of such products and services that Neighbored LLC may make available.

1. **Prohibited use and content**

   Customer may not upload Customer Data or use the Products in a manner that:

1. violates any local, state, national, foreign or international Regulations, including data protection and privacy regulations, or fails to secure all required consents from data subjects;

2. advocates or induces illegal activity;
3. infringes or misappropriates the Intellectual Property Rights of another party;
4. publishes, posts, uploads, or otherwise distributes any software, music, videos, or other material protected by intellectual property laws (or by rights of privacy or publicity), unless Customer has all rights and consents required to do so;
5. is threatening, abusive, harassing, stalking or defamatory;
6. is deceptive, false, misleading or fraudulent;
7. modifies, alters, tampers with, repairs, reverse engineers, disassembles, decompiles or otherwise creates derivative works of any software included in the Products (except to the extent this is expressly permitted under a separate license agreement for the creation of derivative works);
8. is invasive of another’s privacy or otherwise violates another’s legal rights (such as rights of privacy and publicity);
9. involves uploading files that contain viruses, malware, corrupted files, or any other similar software or programs that may damage the operation of another person's computer;
10. interferes with or disrupts the Products or servers or networks connected to the Products;

11. uses any high volume automated means (including robots, spiders, scripts or similar data gathering or extraction methods) to access the Products or any other accounts, computer systems, or networks connected to the Products (each a "System");
12. download any file that Customer knows, or reasonably should know, cannot be legally distributed in that way;
13. falsifies or deletes any author attributions, legal or proprietary designations, labels of the origin or source of software, or other material contained in a file that is uploaded;
14. restricts or inhibits any other Customer from using the Products;
15. harvests or otherwise collects information about others, including e-mail addresses, without their consent;
16. violates the usage standards or rules of an entity affected by Customer’s use, including without limitation any internet service provider (or ISP), ESP, or news or user group (including, for example, circumventing or exceeding equipment use rights and restrictions and/or location and path identification detail); and/or
17. is legally actionable between private parties.

1. Customer will use the Products for Customer's internal business purposes and will not violate the security or integrity of a Product in any way, including but not limited to:

1. willfully tamper with the security of the Products;
2. accessing data on the Products not intended for Customer;
3. logging into a server or account on the Products that Customer is not authorised to access;
4. attempting to probe, scan, or test the vulnerability of any Products or to breach the security or authentication measures without proper authorization;
5. willfully rendering any part of the Products unusable;
6. attempting to gain unauthorized access to any portion of the Products whether through hacking, password mining, or any other means;
7. monitoring data or traffic on a system without permission;
8. leasing, distributing, licensing, selling, or otherwise commercially exploiting the Products or making the Products available to a third party other than as contemplated in the Agreement;
9. using the Products for timesharing or service bureau purposes, or otherwise for the benefit of a third party without our prior written consent; and/or

10. providing to third parties any evaluation version of the Products without our prior written consent.

1. **No SPAM Permitted; Email Opt-Out Requirements**
   Customer may not use the Products in any way (directly or indirectly) to send, transmit, handle, distribute or deliver:

1. unsolicited email ("spam" or "spamming") or commercial electronic messages in violation of the CAN-SPAM Act, Directive 2002/58/EC, or Canada's Anti-Spam Legislation, Dutch Telecommunications Act 1998 ("telecommunicatiewet") or any other applicable laws;
2. email to an address obtained via Internet harvesting methods or any surreptitious methods (e.g., scraping or harvesting); or
3. email to an address that is incomplete, inaccurate and/or not updated for all applicable opt-out notifications, using best efforts and best practices in the industry.

Customer warrants that Customer will promptly comply with all opt-out, unsubscribe, "do not call", and "do not send" requests from users of Customer's services and recipients of Customer's emails. Customer

further warrants that each email Customer sends or which is sent on Customer's behalf using the Products will contain:

4. header information that is not false or misleading; and
5. an advisement that the recipient may unsubscribe, opt-out or otherwise demand that use of its information for unsolicited, impermissible, and/or inappropriate communication(s) as described in this AUP be stopped, and must clearly indicate how the recipient can notify Customer that it wants to unsubscribe, opt-out, or stop this use of its information.

These requirements may not apply if the email concerned is strictly transactional in nature and/or these requirements are otherwise subject to a legal exception.

1. **Prohibited Email Content and Formatting; Email Best Practices**

   Customer is prohibited from using the Products to send emails to addresses acquired from purchased lists. Emails sent, or caused to be sent to or through the Products, may not:

1. contain false or misleading information or content or use or contain invalid or forged headers or invalid or non-existent domain names;
2. employ any technique to otherwise misrepresent, hide, or obscure any information in identifying the point of origin or the transmission path or any other means of deceptive addressing;
3. use a third party's internet domain name without their consent, or be relayed from or through a third party's equipment without the third party’s permission; or
4. use Neighbored LLC’s trademark(s), tagline(s), or logo(s) without our prior written consent and, with such consent, only pursuant to the limits placed on any such use.

1. **Neighbored LLC Trademark Use**

   Unless Customer has Neighbored LLC’s express prior written permission, Customer may not use, remove, or alter any name, logo, tagline, or other mark of Neighbored LLC or the Products, or any identifier or tag generated by the Products, including without limitation:

1. as a hypertext link to any website or other location (except as provided for or enabled expressly by us);

2. to imply identification with Neighbored LLC as an employee, contractor, agent, or other similar representative capacity.

1. **Customer Reporting Suspected Violations**
   Customer can report abuse of this AUP to legal@Neighbored LLC.com. If Customer is the recipient of email messages sent using the Products that Customer knows or suspect were sent in violation of this AUP, Neighbored LLC encourages Customer to report this to Neighbored LLC by forwarding an unaltered copy of the received email.

1. **Assessing Compliance with the AUP**
   Neighbored LLC has the sole discretion to determine whether Customer Data or Customer's use of the Products is prohibited. All Customer Data that is provided to Neighbored LLC or actions that are performed via Customer's account, whether provided or performed by Customer's employees, Customer's contractors, or Customer's customers and end users, are the sole responsibility of Customer.

1. **Monitoring and Enforcement**

   Neighbored LLC may:

1. investigate violations of this AUP or misuse of the Products;
2. take measures to prevent security threats, fraud, or other illegal, malicious, or inappropriate activity;
3. notify Customer of violations of this AUP or misuse of the Products, remove any prohibited materials and deny access to any person who violates this AUP.
4. suspend or terminate Products used in a way that violates this AUP or any other agreement Customer has with Neighbored LLC for the use of the Products;
5. use its discretion in developing and implementing mechanisms to enforce this AUP;
6. report any Customer activity that it suspects violates any law or regulation to appropriate law enforcement officials, regulators, or other appropriate third parties. Neighbored LLC's reporting may include disclosing necessary Customer information.
7. may be required to disclose information regarding Customer's use of any Products to satisfy any law, regulation, government request, court order, subpoena, or other legal process. If Neighbored LLC makes this type of required disclosure

Neighbored LLC will notify Customer, unless Neighbored LLC is required to keep the disclosure confidential.

1. **Fair Use**

   We aim to ensure that all of our Customers enjoy fast and reliable service.

1. **Updates to the AUP**

   Neighbored LLC may update and change any part or all of this AUP. If Neighbored LLC updates or changes this AUP, the updated AUP will be posted publicly neighboredLLC.com/about in the resources section. The updated AUP will become effective and binding ten (10) days after it has been posted. When Neighbored LLC changes this AUP, the "Updated" date below will be changed to reflect the date of the most recent version (“Update Effective Date”). Neighbored LLC encourages Customer to review the online AUP periodically. If Customer objects to any such changes, Customer's sole recourse shall be to cease using the Products. Continued use of the Products following the Update Effective Date of any such changes shall

indicate Customer's acknowledgement of such changes and agreement to be bound by the updated AUP.

This AUP was last updated on: 9 May 2020.